Health and Safety Work Refusal Policy

Policy Summary & Knowledge Check

Authority	Board of Directors
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Previous Amendments	February 26, 2016; November 15, 2011

Policy Summary

This policy establishes procedural guidelines under the Occupational Health & Safety Act for handling a work refusal, reflecting the USC's aim to resolve health and safety concerns before a work refusal occurs. It distinguishes a health and safety complaint from a formal work refusal, sets out the two-stage work refusal process (Supervisor-level investigation, followed by Ministry of Labour involvement if unresolved), and confirms that reprisals against workers who refuse unsafe work are strictly prohibited.

Key Takeaways

- Applies to all USC employees; it is USC policy to resolve health and safety concerns before a work refusal occurs and to provide a uniform reporting procedure.
- When a worker raises a concern, the Supervisor investigates with the worker present to determine whether it is a complaint or a refusal, and if it's a genuine safety issue, must undertake immediate corrective action.
- Workers in Ontario have the right to refuse work they believe is unsafe due to equipment/machines/devices, the physical condition of the workplace, workplace violence, or anything that contravenes the Act or Regulations and may endanger a worker.
- Stage 1: the worker reports (preferably in writing) the reasons the work is believed unsafe and remains in a safe place near their workstation; the Supervisor investigates with the worker, a certified JHSC worker representative, and the Senior Manager, People and Development, then responds in writing with remediation timelines or reasoning.
- Stage 2: if the worker still has reasonable grounds to believe the work is unsafe, they remain in a safe place and the Ministry of Labour is notified; refused work may only be offered to another worker in the presence of a JHSC worker representative and the Senior Manager, People and Development, and that worker must be told of the original refusal and its reasons.
- A Ministry of Labour Inspector investigates in consultation with the Senior Manager, People and Development, the worker, and the JHSC representative, and issues a written decision as soon as possible.
- Reprisals are strictly prohibited under OHSA Part VI, section 50(1): no dismissal, discipline, suspension, penalty, intimidation, or coercion may be used against a worker for exercising these rights.

Knowledge Check

5 situational questions to check understanding of this policy. An answer key follows on the next page.

Q1. A worker believes a piece of equipment is unsafe to operate and refuses to use it. What is the correct Stage 1 action?

A. Attempt to fix the equipment themselves before reporting anything.

B. Wait until their next shift to mention it.

C. Immediately leave for the day without reporting it.

D. Report the concern (preferably in writing) to their Supervisor, remain in a safe place near their workstation, and have the Supervisor investigate with the worker present.

Q2. After a Stage 1 investigation, a worker still has reasonable grounds to believe the work is unsafe. What happens next?

A. The worker remains in a safe place and the Ministry of Labour is notified.

B. The worker is permanently reassigned with no further process.

C. The matter is automatically dropped.

D. The worker must return to the task regardless of their concerns.

Q3. If refused work is offered to another worker during a Stage 2 review, what must happen?

A. It can be offered without informing the second worker of anything.

B. It must be offered in the presence of a JHSC worker representative and the Senior Manager, People and Development, and the second worker must be told of the original refusal and its reasons.

C. Only a manager needs to be present, with no worker representative required.

D. It can only be offered after the Ministry of Labour issues its decision.

Q4. An employer disciplines a worker specifically because they exercised their right to refuse unsafe work. What does the policy say about this?

A. This is only prohibited for unionized staff.

B. This is permitted if handled discreetly.

C. This is a prohibited reprisal under the Occupational Health and Safety Act.

D. This is permitted if the refusal is later found to be unfounded.

Q5. What grounds does the policy identify as valid reasons a worker may refuse work?

A. Personal scheduling conflicts.

B. Only unsafe physical workplace conditions.

C. Only workplace violence.

D. Unsafe equipment/machines/devices, physical workplace conditions, workplace violence, or a contravention of the Act/Regulations that may endanger a worker.

Answer Key

Q1: D — Section 2.2.2.1 describes Stage 1 as reporting to the Supervisor (preferably in writing), remaining in a safe place, and the Supervisor investigating with the worker present.

Q2: A — Section 2.2.2.2.a describes Stage 2, where the worker remains in a safe place and the Ministry of Labour is notified.

Q3: B — Section 2.2.2.2.b requires refused work to be offered in the presence of a JHSC worker representative and the Senior Manager, People and Development, with the other worker advised of the refusal and reasons.

Q4: C — Sections 3.1 and 3.2 state that reprisals such as discipline against a worker for invoking their right to refuse unsafe work are prohibited under the Occupational Health and Safety Act.

Q5: D — Section 2.2.1 lists these four grounds for a valid work refusal under the Occupational Health & Safety Act.